

ICPSR 20541

**National Social Life, Health, and  
Aging Project (NSHAP): Wave 1,  
[United States], July 2005-March  
2006**

Restricted Data Use Agreement

Inter-university Consortium for  
Political and Social Research  
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**National Social Life, Health, and Aging Project (NSHAP): Wave 1, [United States], July 2005-March 2006**

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# Terms of Use

The terms of use for this study can be found at:  
<http://www.icpsr.umich.edu/icpsrweb/ICPSR/studies/20541/terms>

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## **National Social Life, Health and Aging Project**

Public versions of Wave 1 and 2 are available for web download. Wave 3 though, as well as parts of Wave 1 and 2, are restricted and are covered under a restricted use agreement with the University of Chicago.

Upon receipt of the following documents a copy of the restricted data can be sent:

- 1) A copy of your IRB approval for the use of the data in whatever project you require the data for. This will typically fall under an Exempt 4 classification for secondary data analysis.
- 2) A data protection plan (with original signature(s)), which is essentially a written description of how the NSHAP data will be stored on your site and how the data will be protected from unauthorized access on your computer network.
- 3) The signed data use agreement (with original signature(s)). Email requests can be accepted.

Please use the “Instructions for Preparing the NSHAP Data Protection Plan” as a template/guide in formulating YOUR plan for storage and protection. Sign this document and send it along with your IRB and DUA.

# Instructions for Preparing the NSHAP Data Protection Plan

**Purpose of the Data Protection Plan:** The fundamental goal of the protections outlined in this plan is to prevent persons who are not signatories to the Restricted Data Use Agreement or the Supplemental Agreement With Research Staff from gaining access to the data. The agreement will not be executed if the plan is not written with sufficient specificity, or if data protections are not deemed adequate by ICPSR.

**What should be covered by the plan:** The Data Protection Plan applies to both the raw data file received from ICPSR as well as any copies made by the research team, and any new data derived solely or in part from the raw data file. The plan also should address how computer output of direct data listings of the files will be kept secure.

**Components of the plan:** Your Data Protection Plan SHOULD contain the following components:

1. Make reference to Title of Research Project and Principal Investigator(s).
2. List and describe all locations where copies of the data will be kept.
3. Describe the computing environment in which the data will be used:
  - Computing platform (PC, workstation, mainframe platform)    ○ Number of computers on which data will be stored or analyzed    ○ Whether personal computers used in the research project will be attached to a network or will operate independently (stand-alone)
  - Physical environment in which computer is kept (e.g., in room with public access, in room locked when not in use by research staff)
4. List and describe how data will be stored: (e.g., on PC hard drive, on removable storage media such as CD, diskettes, or Zip(R) drive.)
5. Describe methods of data storage when data are not being used.
6. Describe methods of transmitting the data between research team members (if applicable).
7. Describe methods of storage of computer output (in electronic form as well as on paper).

**Types of protection expected:** Although there are alternative ways to assure security for the data and applicants should prepare their plans in a manner that best meets their needs, some or all of the following features are typically found in successful data protection plans:

- Password protection for all files containing data (note that password protection is not regarded as sufficient protection by itself)

- Removable storage media holding the data (e.g., CDs, diskettes, zip disks, etc.) kept in a locked compartment/room when not in use
- Stored in a locked compartment/room when not in use
- No transmittal of data or analysis output derived from the data via e-mail, e-mail attachments, or FTP (either over the Internet, an Intranet system, or within a local area network)
- No backup copies of the data to be made
- Data stored in strongly encrypted form

Wherefore, **User** and Responsible Party hereby accepts responsibility for ensuring that the precautions formulated in their Data Protection Plan will be followed by signing and providing the information below:

Name (printed): \_\_\_\_\_

Signature: \_\_\_\_\_

Institution: \_\_\_\_\_

Mailing Address: \_\_\_\_\_

\_\_\_\_\_

Email Address: \_\_\_\_\_

Date: \_\_\_\_\_

Questions and/or completed data protection plans with **original signatures** should be emailed along with DUA and IRB to [icpsr-nacda@umich.edu](mailto:icpsr-nacda@umich.edu).

## National Social Life, Health and Aging Project

This data use agreement is between **ICPSR** and the individual signing the agreement, hereafter referred to as **User**.

Whereas, the **NSHAP** data contain certain information **User** wishes to use for research, public health, or health care operations as permitted under 42 C.F.R. 164.514(e), **User** agrees as follows:

- a.* Not to use or further disclose the Limited Use **NSHAP** Data Set or any information contained therein other than as permitted by this agreement or required by applicable law.
- b.* To use appropriate safeguards to prevent use or disclosure of the information other than as provided for by this agreement.
- c.* To report to ICPSR any use or disclosure of the Limited Use **NSHAP** Data Set or any part of it not provided for by this agreement of which **User** becomes aware.
- d.* Not to use the information contained in the Limited Use **NSHAP** Data Set to identify the individual whose information is contained in the Limited Use **NSHAP** Data Set, nor to contact them under any circumstances.
- e.* In the event **ICPSR** becomes aware of any use of the Limited Use **NSHAP** Data Set or any part of it that is not authorized under this agreement or required by applicable law, it may (i) terminate this agreement upon notice; (ii) disqualify the **User** from receiving protected health information in the future; and/ or (iii) report the inappropriate use or disclosure to the Secretary of the Department of Health and Human Affairs. Further sanctions may apply under 42 C.F.R. parts 160 and 164.

**ICPSR** and the **NACDA** Program on Aging will use the **User** information to create a registry to be used for quality assurance, bench marking and research follow-up with appropriate permission and in accordance with the requirements of the "Common Rule" 45 CFR 46 and the Privacy regulations 45 CFR 160 and 164.

The **User** agrees to provide **ICPSR** with information regarding the use of the **NSHAP** data for publications, seminars, conference papers, and other research related outcomes to be added in the bibliography of use that **ICPSR** maintains for all studies in its collections.

The Responsible Party **User** or PI proposing or supporting the use of the **NSHAP** data for research, must be a faculty level PI, a Research Scientist or have a similar full time appointment at a University, College or Research Center. Graduate students interested in using **NSHAP** for thesis development or research purposes must obtain the signature of their faculty advisor as the responsible Party **User**.

The **NSHAP** data must be maintained in a secure location. No duplication of the data for further distribution is allowed under this agreement. The data can not be placed upon an unsecured computer network for analysis.

Wherefore, **User** and Responsible Party hereby accepts and agrees to these terms by signing and providing the information below.

Name (printed): \_\_\_\_\_

Signature: \_\_\_\_\_

Institution: \_\_\_\_\_

Mailing Address: \_\_\_\_\_

\_\_\_\_\_

Email Address: \_\_\_\_\_

Date: \_\_\_\_\_

The following individuals (the “Authorized Parties”) are authorized by the Responsible Party **User** to use the Limited Use **NSHAP** Data Set or any part of it on behalf of **UM** or **USER** and agree to abide by the terms of this Agreement:

Name: \_\_\_\_\_ Signature: \_\_\_\_\_

Name: \_\_\_\_\_ Signature: \_\_\_\_\_

Name: \_\_\_\_\_ Signature: \_\_\_\_\_

Completed form with **original signatures** should be emailed to [icpsr-nacda@umich.edu](mailto:icpsr-nacda@umich.edu).